

25STCV06000 25STCV06000

County: los-angeles

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Case Number: 25STCV06000 Hearing Date: August 4, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

KANG

HWA KO,

Plaintiff,

vs.

LAN

CHEN, et al.

Defendants.

Case No.:

25STCV06000

Hearing

Date:

August 4,

ORDER
GRANTING MOTION FOR DETERMINATION OF
GOOD FAITH SETTLEMENT

I. BACKGROUND

Plaintiffs Kang Hwa Ko, Gi Hwan Ko, and Tanya Yim Son were on a property owned by Defendants Alexandre Cazazian (“Alexandre”) and Luiza Cazazian (“Luiza”) when a vehicle, owned and operated by Defendants Lan Chen (“Lan”) and Peng-Shen Chen (“Peng-Shen”) drove into the building, causing injury to Plaintiffs. Plaintiffs sued Defendants for five causes of action, including motor vehicle tort and premises liability.

Pursuant to the Cross-Complaint filed on May 28, 2025, Alexandre and Luiza sued Peng-Shen and Lan for indemnity, apportionment of fault, and declaratory relief.

Pursuant to the Cross-Complaint filed on March 24, 2025, Alexandre, on behalf of the Cazazian Trust (“Trust”), sued Peng-Shen and Lan for indemnity, apportionment of fault, and declaratory relief.

Pursuant to the Cross-Complaint filed on April 7, 2026, Peng-Shen and Lan sued Alexandre, Luiza, and Trust for indemnity, apportionment of fault, comparative fault, and declaratory relief.

On March 19, 2026, Peng-Shen and Lan (“Moving Defendants”) filed the instant motion for determination of good faith settlement between Moving Defendants and Kang Hwa Ko and Gi Hwan Ko (“Kos”). Luiza, Alexandre, and the Trust (“Opposing Defendants”) filed an opposition. Moving Defendants filed a reply.

II. LEGAL STANDARD

California Code of Civil Procedure section 877.6, subdivision (a)(2),^[1] states that “a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order. The application shall indicate the settling parties, and the basis, terms, and amount of the settlement. The notice, application, and

proposed order shall be given by certified mail, return receipt requested, or by personal service. Proof of service shall be filed with the court. Within 25 days of the mailing of the notice, application, and proposed order, or within 20 days of personal service, a nonsettling party may file a notice of motion to contest the good faith of the settlement. If none of the nonsettling parties files a motion within 25 days of mailing of the notice, application, and proposed order, or within 20 days of personal service, the court may approve the settlement. The notice by a nonsettling party shall be given in the manner provided in subdivision (b) of Section 1005. However, this paragraph shall not apply to settlements in which a confidentiality agreement has been entered into regarding the case or the terms of the settlement." The statute further clarifies that the party asserting the lack of good faith shall have the burden of proof on that issue.[2] (§ 877.6, subd. (d).)

Section

877 provides: "[w]here a release, dismissal with or without prejudice, or a covenant not to sue or not to enforce judgment is given in good faith before verdict or judgment to one or more of a number of tortfeasors claimed to be liable for the same tort, or to one or more other co-obligors mutually subject to contribution rights, it shall have the following effect: (a) It shall not discharge any other such party from liability unless its terms so provide, but it shall reduce the claims against the others in the amount stipulated by the release, the dismissal or the covenant, or in the amount of the consideration paid for it, whichever is the greater. (b) It shall discharge the party to whom it is given from all liability for any contribution to any other parties."

In

Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499, the California Supreme Court identified the following nonexclusive factors courts are to consider in determining if a settlement is in good faith under section 877.6: "a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants."

III. DISCUSSION

Moving Defendants request the Court finds the settlement between Moving Defendants and the Kos in the amount of \$225,000.00 was entered into in good faith and dismiss any and all pending claims filed against Moving Defendants in this action, as well as all actual or potential claims against Moving Defendants, for equitable causes of action arising out of the subject matter of this action.

When determining if a settlement is in good faith pursuant to section 877.6, the Court reviews the nonexclusive factors outlined in *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499. These factors include: 1) the plaintiff's total recovery in comparison to the settlor's proportionate liability; 2) the amount paid in settlement; 3) the allocation of settlement proceeds among plaintiffs (if there are multiple); 4) a recognition that a settlor should pay less in settlement than if found liable at trial; 5) financial conditions and insurance policy limits of the settlor; and 6) collusion, fraud, or tortious conduct aimed to injure the interests of non-settling defendants. (Ibid.) The evaluation of whether a settlement was made in good faith is required to "be made on the basis of information available at the time of settlement." (Ibid.)

A. Recovery, Proportionate Liability, and Amount Paid in Settlement

Moving Defendants and the Kos settled this claim in July 2025, with Moving Defendants agreeing to pay the Kos \$225,000.00, in return for the Kos dismissing, with prejudice, and releasing Moving Defendants from all future claims related to this matter. (Mot., Hill Decl. ¶ 2.)

Gi's claims were entirely based upon emotional distress pursuant to loss of consortium, and unsupported by any medical documentation. (Id. at ¶¶ 5-6, Ex A-B.) Kang's claims were based upon injuries to head, neck, back, arms, hands, shoulders, knees, pelvis, legs, chest, and ankles, as well as anxiety, depression, nervousness, nausea, blurred vision, limping and incontinence. (Id. at ¶ 7, Ex. C.) At the time of settlement, Kang claimed \$223,675.94 in medical costs. (Id. at ¶ 8, Ex. D.) Kang also claimed \$53,978.00 in property damages that had already been paid. (Id. at ¶ 7, Ex. C.) There were no claims for loss of earnings or other damages. Therefore, uncontested economic

damages totaled \$223,675.94.

Even

assuming Moving Defendants are liable for 100% of the Kos injuries, Moving Defendants' payment of \$225,000.00 is within 'the ballpark' of a reasonable payment for economic damages known at the time of settlement. The Court evaluates settlements within the context of information available at the time of settlement. (See Tech-Bilt, Inc., supra, 38 Cal.3d at 499.) Parties are not obligated to go above and beyond to research potential liability of other parties or damages not claimed by a plaintiff; this would dissuade parties from entering into swift settlements.

Opposing

Defendants argue that the special damages at least total \$245,055.25, as of the time of filing an opposition. (Opp., Cruz Decl. ¶ 6, Ex. C.) The Court notes Opposing Defendants rely upon Kang's form interrogatory responses served in April 2026, approximately 9 months after settlement was reached. Therefore, this number is irrelevant for purposes of determining this motion.

As outlined in Civil Code section 1431.2, subdivision (a), in any action for personal injury, the liability of each defendant for non-economic damages is several and not joint. Other parties, like Alexandre, will not bear the burden for any non-economic damages not stemming from their own contribution. Non-economic damages are also not utilized to determine the reasonableness of settlement.

Based upon all the evidence, this factor supports the finding that the settlement was made in good faith. The Court notes that Opposing Defendants do not contest any factors other than proportionate share of liability. However, in the interest of addressing all potential concerns, the Court evaluates the additional Tech-Bilt factors.

B. Allocation
of Settlement / Financial
Considerations

The \$225,000.00 in settlement offered to the Kos is part of a global settlement for \$500,000.00, between Moving Defendants and other parties involved in the incident. (Mot., Hill Decl. ¶ 2.) This was offered pursuant to Moving Defendants insurance policy limits, which covers \$250,000.00

per person, and \$500,000.00 for each accident. (Id., at ¶ 9, Ex. E.) As the amount is proportionate to Moving Defendants's liability, and almost exhausts Moving Defendants policy limits, this is indicative of the settlement being made in good faith.

C. Collusion
or Fraud

There is no evidence to suggest collusion, fraud, or tortious conduct aimed to injure the rights of non-settling parties. Settlement was reached via arms-length negotiation between counsel via a mediator. (Id. at ¶ 2.) This is indicative of the settlement being made in good faith.

The facts establish that this settlement was entered into in good faith based upon the information available at the time of settlement. Opposing Defendants have not provided any evidence to establish a lack of good faith. Therefore, the Court grants the motion.

V. CONCLUSION

Defendants Lan Chen and Peng-Shen Chen's application for determination of good faith settlement is GRANTED.

Defendants Alexandre Cazazian, the Cazazian Trust, and Luiza Cazazian's motion to contest the good faith of the settlement is DENIED.

The Court dismisses all pending and future claims against Lan and Peng-Shen by the parties represented by counsel served with this motion (to the extent those claims arise from the facts giving rise to this case), including cross-complaints for equitable indemnity.

Lan and Peng-Shen are ordered to give notice.

DATED:
August 4, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated
statutory references are to the Code of Civil Procedure.

[2] Pursuant
to the procedure specified in § 877.6, the Court interprets the Moving Defendants "motion" as an "application for determination of good faith settlement" and the Opposing Defendants "opposition" as a "motion to contest the good faith of the settlement."